of a State with respect to motor vehicles." § 14501(c)(2)(A). The text of subsection (c)(2)(A) controls. Better to live with the mystery than to rewrite the statute.

* * *

The judgment of the Court of Appeals is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE KAVANAUGH, with whom JUSTICE ALITO joins, concurring.

I join the Court's opinion. I agree that the FAA Authorization Act of 1994 does not preempt state tort suits against brokers who negligently arrange truck transportation with an unsafe carrier.

In my view, this case is closer than the Court's opinion perhaps might suggest. The Seventh and Eleventh Circuits came out the other way, and in doing so, those courts raised a number of powerful points. See *Ye* v. *GlobalTranz Enterprises, Inc.*, 74 F. 4th 453 (CA7 2023); *Aspen Am. Ins. Co.* v. *Landstar Ranger*, 65 F. 4th 1261 (CA11 2023). In the end, however, I agree with this Court's decision and will briefly explain why.

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Brokers are intermediaries between shippers and trucking companies. Shippers contract with brokers, and brokers then select motor carriers (that is, trucking companies) to transport the shippers' goods. The trucking companies own or lease the trucks and hire the drivers.

When truck accidents occur, an injured party will sometimes bring a state tort suit against a trucking company that, for example, maintained an unsafe truck or hired or employed an at-fault driver. All parties here agree that those suits against trucking companies are not preempted and thus are permitted under the FAA Authorization Act. The ques-

tion is whether state tort suits against the upstream brokers who select the trucking companies are also permitted.

Under the text of the Act, that question ultimately boils down to whether a state tort claim against a broker for negligently arranging unsafe truck transportation is a claim "with respect to motor vehicles." 49 U. S. C. §14501(c)(2)(A). If yes, state tort suits against brokers are permitted. If no, state tort suits are preempted.

The answer depends on how expansively to read the key statutory phrase "with respect to motor vehicles." That inquiry is complicated because the phrase "with respect to"—like similar statutory phrases such as "related to" or "relating to"—is a somewhat elastic phrase whose breadth is determined by context. See *United States* v. *Miller*, 604 U. S. 518, 532–533 (2025); *Dubin* v. *United States*, 599 U. S. 110, 118–119 (2023); *Lamar, Archer & Cofrin, LLP* v. *Appling*, 584 U. S. 709, 717 (2018); *California Div. of Labor Standards Enforcement* v. *Dillingham Constr., N. A., Inc.*, 519 U. S. 316, 335 (1997) (Scalia, J., concurring) ("But applying the 'relate to' provision according to its terms was a project doomed to failure, since, as many a curbstone philosopher has observed, everything is related to everything else").

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Here, the brokers do not own or lease the vehicles or hire the drivers. But they do select the trucking companies. Does the statutory phrase "with respect to motor vehicles" extend so broadly as to encompass the brokers' activities? To answer that question and draw the appropriate line, we must examine the relevant statutory context, including surrounding statutory provisions.

The contextual considerations here point in different directions. In favor of the brokers are two other provisions of the Act: the mandatory-insurance provision and the intrastate preemption provision.

First, the Act mandates a minimum level of insurance coverage for trucking companies—but not for brokers. 49 U. S. C. §§13906(a)(1), (b)(2)(A). That coverage ensures that

trucking companies can pay when they are held liable for truck accidents. The dichotomy between trucking companies and brokers suggests (at least to some extent) that Congress did not anticipate state tort suits against brokers for negligent selection. Otherwise, Congress presumably would have mandated insurance coverage for brokers as well.

Second, all agree that the Act as amended does not permit state tort suits against brokers for arranging *intrastate* transportation. But plaintiff here is arguing that the statute allows state tort suits against brokers for arranging *interstate* transportation. As a matter of ordinary preemption doctrine, which is rooted in federalism principles, that seems exactly backwards: Why would Congress permit state tort suits against brokers for arranging interstate trips but preempt state tort suits against brokers for arranging intrastate trips? Plaintiff has no good answer to that question. So as plaintiff's counsel forthrightly acknowledged at oral argument, a ruling in plaintiff's favor would create a substantial anomaly. Tr. of Oral Arg. 7–8, 25.

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For their part, the brokers seize on that rather glaring hole in plaintiff's argument. The brokers note that there would be no anomaly if, as they argue, all state tort suits against brokers for negligent selection were preempted. Good point.

So those two contextual considerations favor the brokers and point toward a narrower construction of "with respect to motor vehicles" such that state tort suits against brokers would be preempted. But other contextual points decisively tilt in the opposite direction and point toward a broader construction of "with respect to motor vehicles" such that state tort suits against brokers would be permitted.

Most important is the overall structure of the safety regime for the trucking industry. Enacted in 1994, the FAA Authorization Act pursued economic deregulation of the industry. But the Act largely left intact the extant system of

safety regulation, including state tort suits. See 49 U. S. C. § 14501(c)(2)(A). The Act did not preempt state tort suits against trucking companies for truck accidents. And the negligent-hiring tort against brokers, like the negligence tort against trucking companies, exists to keep unsafe trucks and unsafe drivers off America's highways. Given that Congress in the FAA Authorization Act sought economic deregulation—not safety deregulation—it is hard to read the statute as written and conclude that Congress subtly sliced and diced state tort law so that trucking companies would be subject to state tort suits for accidents, but brokers would operate free of any such tort liability.

The brokers' preemption argument also lies in some tension with the absence of meaningful safety-related regulation of brokers at the federal level. In particular, federal law does not require brokers to take substantial steps to ensure that they select safe trucking companies. Congress's "regulation of brokers instead seems to address the financial aspects of broker services, not safety." *Ye*, 74 F. 4th, at 463. And the relevant regulatory agency, the Federal Motor Carrier Safety Administration, requires brokers to select a federally registered carrier but does not otherwise "impos[e] safety standards on broker hiring." *Ibid.* See Tr. of Oral Arg. 74–75, 90; Brief for Institute for Safer Trucking as *Amicus Curiae* 14–17.

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The lack of meaningful federal safety regulation of brokers' selection of carriers tends to support plaintiff's argument here because it is doubtful that Congress, through such indirect language in an economic-deregulation statute, would allow brokers to operate in a black hole with no meaningful safety-related regulation.

And that contextual point matters because, as Congress well understood, truck safety is a matter of life and death. In 2022 in the United States, about 500,000 reported truck accidents resulted in about 5,000 deaths and 114,000 injuries. U. S. Dept. of Transp., Fed. Motor Carrier Safety Admin.,

Large Truck and Bus Crash Facts 2022, p. 45 (2025). Not all truck accidents can be prevented. But some can. Some carriers are known to be less safe; some truck drivers are known to be unfit.

It is true, as the brokers emphasize, that trucking companies are in the best position to monitor their own trucks and drivers. By contrast, brokers may not always (or even often) be in a good position to objectively assess the relative safety of different trucking companies. See Brief for Transportation Intermediaries Association, Inc. as *Amicus Curiae* 20–28. That said, brokers may sometimes become aware that a particular carrier operates unsafe trucks or hires unfit drivers. And if brokers can be "held liable for disregarding poor safety records, they have a strong incentive to do business only with safe and reliable motor carriers." Brief for the State of Ohio, 28 Other States, and the District of Columbia as *Amici Curiae* 18.

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Importantly, the Court's decision today should not be read to mean that brokers will routinely be subject to state tort liability in the wake of truck accidents. As even plaintiff's counsel stressed, brokers should be able to successfully defend against state tort suits if the brokers have acted reasonably and arranged transportation with reputable trucking companies. Tr. of Oral Arg. 27–29. In plaintiff's counsel's words, the brokers "just have to hire carriers that actually have a reasonable policy," and "the broker is not going to have a problem if it's asking the hard questions of the carrier." *Id.*, at 42, 45. In addition, the proximate-cause requirement in typical state tort law should help protect brokers from excessive liability. *Id.*, at 25.

That said, the brokers rightly caution against naiveté. In the real world, as the brokers forcefully respond, state tort law can be unpredictable, and the costs to brokers of litigation and insurance may be significant even when brokers prevail in lawsuits. Moreover, the costs of litigation and insurance, as well as the costs of brokers' conducting more

substantial inquiries into trucking companies, will cascade through the economy and be paid in part by American consumers in the form of higher prices. See Brief for Chamber of Commerce et al. as *Amici Curiae* 25–34; Brief for National Association of Manufacturers as *Amicus Curiae* 15. The concerns expressed by the brokers are legitimate and weighty. But those countervailing points ultimately do not carry the day in determining how broadly to construe the vague "with respect to motor vehicles" language in this Act.

* * *

As I see it, the conflicting contextual considerations make this a close case as we determine how to construe and where to draw the line on the statutory phrase "with respect to motor vehicles." In the end, I do not believe that Congress, through such oblique language in an economic-deregulation statute, simultaneously (i) allowed state tort suits against negligent trucking companies and (ii) categorically preempted state tort suits against upstream brokers who negligently select an unsafe trucking company. The brokers and their *amici* raise serious concerns about the repercussions of state tort liability against brokers, and they may of course (among other possibilities) ask Congress and the President to change federal law. But as of now, federal law does not preempt state tort liability against brokers for negligent selection of trucking companies.

With those additional comments, I join the Court's opinion.

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